

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

NICOLE ASHLEY SALVADOR,

Petitioner

VS.

NICHOLAS EDWARD TORRES,

Respondent

) Case Number: FDI-18-789787

) Hearing Date: July 21, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: CHANGE OF CHILD SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Nicole Salvador (Mother) and Respondent Nicholas Torres (Father) married on 5/29/2015 and separated on 3/1/2018, for a marriage of 2 years and 9 months. The parties have two minor children, Noah (DOB: 10/26/2008, age 17) and Elias (DOB: 7/1/2010, age 16). Mother is currently represented by attorney Natalie Gomez. Father is currently represented by attorney Andrew Wu.
- 2) On 9/12/2018, the Court entered a Stipulated Judgment. The Judgment requires Father to pay Mother \$0 (which the parties acknowledged in the Judgment is a below-guideline child support order) and requires the parties to share equally all uninsured medical expenses of the children. The Judgment also includes an agreement to terminate the Court's jurisdiction to award spousal support to either party. The Judgment further provides that the parties will share joint legal and joint physical custody of their children, and that the children will spend 50% of their time in each parent's care. The guideline child support calculation attached to the parties' Judgment includes

1 income for Father of \$4,458 per month and income for Mother of \$8,170 per month, and shows a
2 guideline child support amount of \$530 per month.

3 3) Now on for hearing is Father's Request for Order filed 2/5/2026 seeking a guideline child support
4 order. Father states that he currently teaches two classes at San Francisco State University during
5 the 2025-2026 academic year, and also coaches high school track and field for Stuart Hall. Father
6 states he previously taught three classes during the 2024-2025 academic year, but lost a class at
7 SFSU during the second half of 2025. Father also states that he used to teach classes at City
8 College of San Francisco, but he hasn't done so since 2021 because his contract was not renewed.
9 Father states, "Teaching at SFSU and CCSF on a year-to-year contract basis (without tenure) has
10 proven to be an extremely difficult career path for me in recent years, so that's why, in the
11 autumn of 2024, I matriculated as a doctoral student at the University of San Francisco..., with
12 studies focusing on the field of education, that I hope to complete by mid-year in 2028, which
13 will eventually lead to an Ed.D degree. After I finish my studies at USF, it's my intention to
14 secure a more permanent and stable job in the teaching profession than the ones I now have."

15 4) On 7/7/2026, Mother filed a Responsive Declaration and Memorandum of Points and Authorities.
16 Mother asks that the Court deny Father's request for child support. In the alternative, if the Court
17 is inclined to award Father child support, Mother asks the Court to consider Father's earning
18 capacity, make a downward deviation from guideline under Family Code sections 4056 and
19 4057(b), apply a hardship deduction to both parties, order that the parties share the children's
20 uninsured medical expenses equally, and apportion any other add-on expenses equitably
21 (crediting those Mother "has paid without contribution" from Father). Mother states that during
22 the eight years since entry of Judgment, the parties have resolved disagreements regarding
23 financial support and custody without litigation. Mother states the only change which has
24 occurred since entry of Judgment is Father's decision to return to school to pursue a doctorate
25 degree which Father will not complete until mid-2028, which is after Noah will reach the age of
26 majority (he turns 18 in October 2026) and approximately the same time Elias will reach the age
27 of majority (he turns 18 in July 2028). Mother states that the source of funding for Father's tuition
28 remains unknown and is the subject of pending discovery. Mother argues that Father's tuition
29 expense comes at a cost to the children, given Father's admission that he has minimized his work

1 hours to attend classes. Mother attaches as Exhibit D to her Responsive Declaration copies of job
2 listings in the Bay Area Adjunct Faculty positions at Saint Mary's College of California which
3 require "a terminal degree in Kinesiology or a closely related field and have a recent publication
4 record in the field, or a Master's degree in Kinesiology or a closely related field and have at least
5 five years of current, relevant professional experience."

6 5) On 7/7/2026, Mother filed an Income and Expense Declaration. Mother states that she is 38 years
7 old and works as a senior legal analyst for the California Department of Justice. Mother states
8 that she works 40 hours per week and earns on average \$6,770 per month. Mother has three
9 children, Noah and Elias with Father, and a one-year-old daughter Tahlia with her current spouse.

10 6) On 7/16/2026, Father filed a Reply Memorandum of Points and Authorities. Father states that the
11 job postings provided by Mother do not show that Father has an actual opportunity to obtain those
12 positions, that he would likely be hired, that the class schedules would be compatible with those
13 of his current employment and/or parenting responsibilities, or that the positions would produce
14 income materially greater than his combined earnings from his current part-time employment.
15 Rather, the postings indicate that a terminal degree, which is precisely what Father is currently
16 pursuing, is one pathway to meeting the qualifications for at least some of the open academic
17 positions in Father's field. The postings also indicate that graduate-level teaching effectiveness is
18 strongly preferred. However, Father's teaching experience has only been at the undergraduate
19 level. Father also states that he should not be expected to leave existing employment within the
20 California State University system, where he has a vesting pension and nearly cost-free health
21 insurance benefits, for speculative temporary adjunct work requiring a significant commute that
22 offers no demonstrable long-term stability, comparable benefits, or a meaningful increase in
23 overall compensation. Father also notes that imputation of income should be applied equitably
24 and fairly and that Mother has a history of earning more than what she currently earns. Father
25 further notes that Family Code section 4053 codifies that a parent's first and principal obligation
26 is to support their minor children according to the parent's circumstances and station in life.
27 Father notes that Noah and Elias have already benefitted from his employment with Stuart Hall
28 by way of significant tuition assistance and scholarship access due to his employment with Stuart
29 Hall. Father also states that his pursuit of a doctorate degree has had no material effect on, and is

not the cause of the reduction in, his historical income. Father further notes that he has a duty to support all of his minor children, including his third child Evren (DOB: 5/9/2024) with his current spouse. Father also states that his mother is currently paying for his tuition.

- 7) On 7/16/2026, Father filed two Income and Expense Declarations, one showing his income from San Francisco State University, for which he works 17 hours per week and earns \$2,600 per month, and the other showing his income from Stuart Hall. Father's Stuart Hall paystubs show that he worked a total of 240.5 hours between 2/18/2026 and 5/12/2026, which averages out to 20 hours per week, and earned \$10,240 in year-to-date income as of 5/12/2026, which averages approximately \$2,360 per month. Father states that he is 38 years old and has a B.S. as well as a Masters in Kinesiology.

B. Findings and Order

- 1) Family Code section 4065(d) states: "If the parties to a stipulated agreement stipulate to a child support order below the amount established by the statewide uniform guideline, no change of circumstances need be demonstrated to obtain a modification of the child support order to the applicable guideline level or above." The Stipulated Judgment includes a below-guideline child support order of \$0. The Court finds that Father does not need to show a change in circumstances to obtain a modification of child support to the applicable guideline level or above.
- 2) Father states that he is currently working 17 hours per week for San Francisco State University and his paystubs from Stuart Hall show that he is working on average 20 hours per week for Stuart Hall, which means that Father is working approximately 37 hours per week, essentially a full-time work schedule. The Court does not find that Mother has met her burden to prove that Father has the ability or opportunity to earn more than he is currently earning. The Court further notes that Father currently earns approximately \$4,960 per month, which exceeds the \$4,458 monthly income attributed to him in the 2018 guideline calculation attached to the Judgment. Mother, on the other hand, reports earning less than the income attributed to her in that same calculation. If the Court were inclined to impute income to Father, it would likewise need to consider whether income should also be imputed to Mother. However, Father has not established that Mother currently has the ability and opportunity to earn more than she presently earns. Accordingly, Mother's request to impute income to Father is denied.

- 1 3) The Court does not find that Mother has established good cause under Family Code sections 4056
2 and 4057 to rebut the presumptively correct guideline child support amount.
- 3 4) Effective 2/5/2026 (the date Father filed his Request for Order), in accordance with the XSpouse
4 calculation attached hereto and incorporated herein, Mother shall pay Father guideline child
5 support of \$562 per month. One-half shall be due and payable by the 1st and one-half shall be due
6 and payable by the 15th of each month.
- 7 5) Child support for July 2026 shall be paid in full no later than Friday, 7/24/2026 at 5:00 PM.
- 8 6) The Court finds that Mother owes Father child support arrears of \$462 for the period 2/5/2026 –
9 2/28/2026 and \$2,248 for the period 3/1/2026 – 6/30/2026, for total arrears due and owing of
10 \$2,710 for the period 2/5/2026 – 6/30/2026. Effective 8/15/2026, Mother shall pay Father an
11 additional \$451.67 by the 15th of each month for 6 months to satisfy this arrears balance.
- 12 7) The Court does not find good cause to modify the current order requiring the parties to share the
13 uninsured healthcare expenses of the children equally.
- 14 8) Father's attorney shall prepare the Findings and Order After Hearing.
- 15 9) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
16 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
17 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
18 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
19 proposed order after hearing directly to the court. Failure to submit the order after hearing within
20 10 days may allow the other party to prepare a proposed order and submit it to the court in
21 accordance with CA Rules of Court, Rule 5.125(d).
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Fixed Shares	Father	Mother	Monthly figures		Cash Flow	Guideline	Proposed
#of children	0	2	2026				
% time with NCP	49.99 %	0.00 %			Comb. net spendable	8760	8807
Filing status	<-MFS	MFJ->	GUIDELINE		Percent change	0%	1%
# exemptions	2	5 *	Nets(adjusted)		Father		
Wages+salary	4960	6770	Father	3442	Payment cost/benefit	562	746
Self-employed income	0	0	Mother	5318	Net spendable income	4004	4188
Other taxable income	0	0	Total	8760	Change from guideline	0	184
TANF+CS received	0	0	Support		% of combined spendable	46%	48%
Other nontaxable income	0	0	Addons	0	% of saving over guideline	0%	390%
New spouse income	0	0	Guideln CS	562	Total taxes	887	463
401(k) employee contrib	0	271	S.Clara SS	0	Dep. exemption value	0	0
Adjustments to income	0	0	Total	562	# withholding allowances	0	0
SS paid prev marriage	0	0	-		Net wage paycheck	3775	3775
CS paid prev marriage	0	0	Settings changed		Mother		
Health insurance	107	68			Payment cost/benefit	-562	-699
Other medical expense	0	0			Net spendable income	4756	4619
Property tax expense	0	0			Change from guideline	0	-137
Ded interest expense	0	0	Proposed		% of combined spendable	54%	52%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%	-290%
Misc tax deductions	0	0	CS	322	Total taxes	536	913
Qual bus income ded	0	0	SS	0	Dep. exemption value	0	0
Required union dues	35	35	Total	322	# withholding allowances	0	0
Mandatory retirement	208	532	Saving	47	Net wage paycheck	5104	5104
Hardship deduction	281 *	281 *	Releases	2			
Other GDL deductions	0	0	Released to Father				
Child care expenses	0	0					

Mother pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information									
	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	49 - 51	0	0	0	Father	562	Mother	562	Mother
Noah	49 - 51	0	0	0	Father	219	Mother	219	Mother
Elias	49 - 51	0	0	0	Father	344	Mother	344	Mother